

thereof (which specifies, as one of the contribution conditions for death grant, the payment by the person by whom the conditions are to be satisfied of not less than twenty-six contributions of the appropriate class in respect of the period between that person's entry into insurance and the relevant time as defined by that paragraph), of the following head:—

“(a) not less than twenty-six contributions of the appropriate class have been paid by or credited to the relevant person in respect of the period between the appointed day and the relevant time; and”.

Short title,
citation and
extent.

2.—(1) This Act may be cited as the National Insurance Act, 1949, and the National Insurance Acts, 1946 and 1948, and this Act may be cited together as the National Insurance Acts, 1946 to 1949.

(2) This Act shall not extend to Northern Ireland.

CHAPTER 57

Airways Corporations Act, 1949

ARRANGEMENT OF SECTIONS

Section

1. Merger of British South American Airways Corporation with British Overseas Airways Corporation.
2. Stock and borrowing powers.
3. Disposal of excess revenue.
4. Accounts, etc.
5. Additional deputy chairman of British Overseas Airways Corporation.
6. Pending proceedings.
7. Construction of references, etc.
8. Short title.

An Act to provide for the merger of the British South American Airways Corporation with the British Overseas Airways Corporation; to authorise the appointment of an additional deputy chairman of the British Overseas Airways Corporation; and for purposes connected with the matters aforesaid.

[30th July 1949.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1.—(1) On the passing of this Act all property of the British South American Airways Corporation situated in the United Kingdom, all aircraft of that Corporation registered in the United Kingdom and all rights, liabilities and obligations of that Corporation which are enforceable in the United Kingdom shall by virtue of this Act and without further assurance be transferred to the British Overseas Airways Corporation.

Merger of
British South
American
Airways
Corporation
with British
Overseas
Airways
Corporation.

(2) As from the passing of this Act—

(a) the British South American Airways Corporation shall have power, without consideration, to transfer to the British Overseas Airways Corporation any property or rights not transferred by virtue of the foregoing subsection ; and

(b) the British Overseas Airways Corporation shall have power, without consideration, to undertake any liabilities or obligations of the British South American Airways Corporation not transferred as aforesaid.

(3) Without prejudice to the provisions of section fifty-two of the Finance Act, 1946 (which exempts from stamp duty certain documents connected with statutory schemes for the carrying on of undertakings under national ownership or control)—

(a) stamp duty shall not be payable on any conveyance, agreement or other instrument executed in pursuance of the last foregoing subsection ; and

(b) section eight of the Finance Act, 1899 (which imposes stamp duty in respect of loan capital) shall not apply to any loan capital transferred by virtue of this Act.

(4) When the Minister of Civil Aviation is satisfied that the necessary arrangements have been made for transferring to the British Overseas Airways Corporation any property, rights, liabilities and obligations of the British South American Airways Corporation not transferred by virtue of subsection (1) of this section, he may by order direct that the British South American Airways Corporation shall be dissolved on such day as may be specified in the order (in this Act referred to as “the appointed day”).

(5) The power of the Minister of Civil Aviation to make an order under the last foregoing subsection shall be exercisable by statutory instrument.

Stock and
borrowing
powers.

2.—(1) Section seven of the Civil Aviation Act, 1946, and subsection (1) of section eight of that Act (which enable the new Corporations established by that Act to borrow money and issue stock) shall cease to have effect in relation to the British South American Airways Corporation.

(2) As from the date of the passing of this Act, the three per cent. British South American Airways Stock, 1980-1983, shall be deemed to be stock issued by the British Overseas Airways Corporation, and shall be charged accordingly on the undertaking and the property and revenues of that Corporation; and as from the sixteenth day of February, nineteen hundred and fifty, that stock shall be deemed to be of the same issue as the three per cent. Airways Stock, 1980-1983, and shall be subject to the terms and conditions applicable to the last-mentioned stock.

(3) Any stock issued by the British Overseas Airways Corporation, whether before or after the passing of this Act, including stock deemed to be so issued by virtue of the last foregoing subsection, may be described by such title as that Corporation may with the approval of the Minister of Civil Aviation determine; and accordingly subsection (1) of section fourteen of the British Overseas Airways Act, 1939, shall have effect as if for the words "to be called 'Airways Stock'" there were substituted the words "in this Act referred to as 'Airways Stock'".

(4) Subsection (2) of section ten of the Civil Aviation Act, 1946 (which restricts the amount which may be outstanding in respect of borrowing by the British South American Airways Corporation), shall cease to have effect.

(5) Subsection (3) of the said section ten (which restricts the amount which may be outstanding in respect of borrowing by the British Overseas Airways Corporation) shall have effect as if for the words "fifty million pounds" there were substituted the words "sixty million pounds"; and for the purposes of that subsection, temporary loans raised by the British South American Airways Corporation and not repaid before the passing of this Act shall be treated as temporary loans raised by the British Overseas Airways Corporation.

(6) Subsection (1) of section thirteen of the British Overseas Airways Act, 1939 (which enables the British Overseas Airways Corporation to borrow money) shall have effect as if at the beginning of paragraph (c) of the subsection there were inserted the words "the promotion of other undertakings", and for the words "on behalf of" there were substituted the words "for the benefit of".

(7) Nothing in this section shall affect any guarantee by the Treasury of stock issued by the British South American Airways

Corporation, or of any temporary loan issued by that Corporation; and in relation to any sums which may be issued out of the Consolidated Fund under subsection (2) of section nine of the Civil Aviation Act, 1946, in respect of any such guarantee, subsection (3) of the said section nine (which charges such sums on the undertaking of the Corporation concerned) shall have effect as if the Corporation concerned were the British Overseas Airways Corporation.

3. For the purposes of the proviso to subsection (2) of section eighteen of the Civil Aviation Act, 1946 (which limits, by reference to the grants made to any of the three Corporations, the sums which that Corporation may be required to pay into the Exchequer by virtue of a direction under that section), any grant made before the passing of this Act to the British South American Airways Corporation shall, in relation to any direction given under that section after the passing of this Act, be deemed to have been made to the British Overseas Airways Corporation. Disposal
of excess
revenue.

4.—(1) In respect of the financial year ending with the thirty-first day of March, nineteen hundred and fifty, and any subsequent financial year beginning before the appointed day— Accounts, etc.

(a) the statement of accounts prepared by the British Overseas Airways Corporation under section twenty-one of the Civil Aviation Act, 1946, may extend to the accounts of the British South American Airways Corporation, and in that case no such statement shall be prepared or sent to the Minister under that section by the British South American Airways Corporation; and

(b) the report made to the Minister by the British Overseas Airways Corporation under subsection (1) of section twenty-two of the said Act may extend to the operations of the British South American Airways Corporation, and in that case no report shall be made under that subsection by the British South American Airways Corporation.

(2) Any programme or estimate which, during the period between the passing of this Act and the appointed day, is submitted to the Minister by the British Overseas Airways Corporation in accordance with subsection (1) of section twelve of the Civil Aviation Act, 1946, or subsection (4) or subsection (5) of section twenty-two of that Act may extend to the services, receipts and expenditure of the British South American Airways Corporation, and in any such case no programme or estimate shall be so submitted by the British South American Airways Corporation.

Additional
deputy
chairman of
British
Overseas
Airways
Corporation.

5.—(1) Two deputy chairmen of the British Overseas Airways Corporation may be appointed, and accordingly the following subsections shall be substituted for subsections (2) and (3) of section one of the British Overseas Airways Act, 1939 :—

“(2) The Corporation shall consist of a chairman, not more than two deputy chairmen, and such number of other members as the Minister of Civil Aviation may from time to time think fit :

Provided that the total number of members of the Corporation shall be not less than five nor more than eleven.

(3) The members of the Corporation shall be appointed by the Minister of Civil Aviation, who shall also appoint members of the Corporation to be chairman and deputy chairman or deputy chairmen respectively.”

(2) Paragraph 8 of the First Schedule to the Civil Aviation Act, 1946 (which enables the Minister, in certain circumstances, to consult with the deputy chairman of any of the three Corporations instead of with the chairman) shall have effect in relation to the British Overseas Airways Corporation, at any time when two deputy chairmen of that Corporation hold office, as if for the reference to the deputy chairman there were substituted a reference to either of the deputy chairmen.

Pending
proceedings.

6. Any proceeding or cause of action pending or existing immediately before the passing of this Act by or against the British South American Airways Corporation may be continued and enforced by or against the British Overseas Airways Corporation as it might have been by or against the British South American Airways Corporation if this Act had not been passed.

Construction
of references,
etc.

7.—(1) On and after the appointed day, references to the British South American Airways Corporation in any enactment, order, rule, regulation or other instrument shall be construed as references to the British Overseas Airways Corporation :

Provided that this subsection shall not apply to any such reference as aforesaid in the Civil Aviation Act, 1946, or regulations made thereunder, or in section fifty-seven of the Finance Act, 1947.

(2) Any undertaking which immediately before the appointed day is associated with the British South American Airways Corporation under the terms of an arrangement by virtue of which it is an associate of that Corporation within the meaning of section fourteen of the Civil Aviation Act, 1946, shall be deemed, on and after the appointed day, to be so associated with the British Overseas Airways Corporation and to be an associate of that Corporation accordingly.

(3) Without prejudice to the provisions of section one of this Act and of the last foregoing section, all deeds, bonds, agreements and instruments which are subsisting immediately before the appointed day and affect the British South American Airways Corporation shall on and after the appointed day be as of full force and effect against or in favour of the British Overseas Airways Corporation, and enforceable as fully and effectually as if, instead of the British South American Airways Corporation, the British Overseas Airways Corporation had been named therein or had been a party thereto.

8. This Act may be cited as the Airways Corporations Act, Short title. 1949.

Table of Statutes Referred to in this Act

Short Title	Session and Chapter
Finance Act, 1899	62 & 63 Vict. c. 9.
British Overseas Airways Act, 1939 ...	2 & 3 Geo. 6. c. 61.
Finance Act, 1946	9 & 10 Geo. 6. c. 64.
Civil Aviation Act, 1946	9 & 10 Geo. 6. c. 70.
Finance Act, 1947	10 & 11 Geo. 6. c. 35.

CHAPTER 58

An Act to amend the law with respect to customs in the Isle of Man. [30th July 1949.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1.—(1) The duties of customs payable on tea under section Tea. five of the Act of 1938 shall cease to be payable, but in lieu thereof there shall, until the first day of August, nineteen hundred and fifty, in the case of tea removed or imported into the Isle of Man and not being an Empire product, be payable a duty of customs at the rate of twopence the pound.

(2) This section shall be deemed to have had effect as from the ninth day of April, nineteen hundred and forty-nine.